

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	
	)	DIA NO. 98DPHSW013
	)	
CHARLES F. DOPKE	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On April 29, 1998, the Iowa Board of Social Work Examiners (Board) filed a Statement of Charges against Charles F. Dopke (Respondent) alleging that he had violated 645 Iowa Administrative Code 280.212(12) by having been disciplined by another state. A Notice of Hearing was issued which set a hearing before the Board for July 13, 1998.

The hearing was held on July 13, 1998 at 11:00 a.m. in the second floor conference room, Hoover State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Bruce Buchanan, L.I.S.W., Chairperson; William McCarty, L.I.S.W.; Janice McCoy, L.B.S.W.; Erlene Veverka and Linda L. Sickels, Public Members. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, served as the presiding officer for the Board. The Respondent appeared and was represented by his counsel, Michael Lacey. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was closed to the public, pursuant to Iowa Code section 272C.6(1)(1997) and 645 IAC 280.206.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(1997). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the Statement of Charges, Notice of Hearing, the testimony of the witnesses, and the following exhibits:

- State Exhibit A: Letter dated 2/19/98 (Zwieg to Sparks)
- State Exhibit B: Certification, 2/17/98
- State Exhibit C: Stipulation, State of Wisconsin, Social Worker Section, 2/4/98
- State Exhibit D: Final Decision and Order, State of Wisconsin Social Worker Section, 2/12/98
- Respondent Exhibit 1: Respondent's Resume

Respondent Exhibit 2: Affidavit

Respondent Exhibit 3: Letter dated 7/7/98 (Peters to Jones)

Respondent Exhibit 4: Letter dated 7/3/98 (Barton to whom it may concern)

Respondent Exhibit 5: Letter dated 7/2/98 (Tuescher to Jones)

Respondent Exhibit 6: Letter dated 8/8/95

Respondent Exhibit 7: Letter (Lacey to Board)

FINDINGS OF FACT

1. The Respondent was issued license number 02566 to practice as a social worker in the state of Iowa on October 29, 1997, as recorded in the permanent records in the office of the Board. The Respondent's license to practice social work in Iowa is current and will next expire on December 31, 1998. (Statement of Charges, Board Licensing Records)

2. On February 19, 1998, the Board received a letter from an attorney with the State of Wisconsin Department of Regulation and Licensing. The attorney stated that on February 12, 1998, he presented a stipulated resolution of two investigative files regarding the Respondent to the Social Workers Section of the Wisconsin Examining Board of Social Workers, Marriage and Family Therapists and Professional Counselors. The Wisconsin Board accepted the stipulation and issued the Final Decision and Order, which was enclosed with the letter. (Testimony of Roxanne Sparks; State Exhibit A)

3. The enclosed Stipulation had been signed by the Respondent, his Wisconsin attorneys, and the attorney for the Wisconsin Board. It stated that the Respondent understood that by signing the stipulation he was voluntarily and knowingly waiving his rights to a hearing on the allegations against the Respondent. The Respondent neither admitted nor denied the allegations, but agreed to the adoption of the Final Decision and Order and waived all rights of appeal. (Testimony of Roxanne Sparks; State Exhibits B, C)

4. The Final Decision and Order of the Wisconsin Board included Findings of Fact and Conclusions of Law on three separate counts. The following is a summary of the Findings of Fact:

Count I: On January 12, 1995, the Respondent spoke to a former client while in the public area of his office and while in the presence of others. The Respondent continued to

provide services to the former client's children. Without written or verbal consent from the client, the Respondent asked her whether she was still living with the man who beat her children. By disclosing this information in this manner, the Respondent violated the former client's confidentiality.

Count II: Count II concerned a female client for whom the Respondent provided services in 1993 and 1994. As her therapy progressed, the Respondent became aware that the client had romantic feelings toward the Respondent and was interested in more than a therapeutic relationship. Although his employer's policies did not allow him to provide services to clients in their homes, the Respondent visited the client in her home, where they were alone, on at least three occasions. On at least one occasion, the Respondent allowed the client to visit him at his home. Although it was not therapeutically warranted, the Respondent maintained frequent (sometimes as often as daily) telephone contact with the client. At the Respondent's suggestion, the client kept a journal. On one occasion, the Respondent met with the client outside of his apartment where she shared several pages of her journal containing a descriptive and graphic sexual fantasy between her and the Respondent. The Respondent told her that the pages should be destroyed by either the client or himself. The client gave the journal pages to the Respondent and he destroyed them. The Respondent contends that he expressed to the client the inappropriateness of her feelings toward him, her flirtatious behavior and the sexual fantasy journal entry. The Respondent did not tell his supervising therapist or program director about the client's actions or comments, nor did he seek consultation regarding her treatment. Though her conduct would have required reassignment to a different therapist, the Respondent continued to provide therapy to the client.

Count III: In January 1996, a third client had two psychotherapy sessions with the Respondent. On February 8, 1996 the Respondent was placed on indefinite investigatory suspension because of allegations unrelated to this client. Following February 8, 1996, the Respondent contacted the client at her home to tell her about his change in employment. At the end of March 1996, the Respondent and the client met at a community function and later went to a restaurant for "closure" of their professional relationship. No later than August 1996, the Respondent and the former client began a sexual relationship which continued until at least September 19, 1997.

(Testimony of Roxanne Sparks; State Exhibit D)

5. The Final Decision and Order of the Wisconsin Board included the following Conclusions of Law:

Count I: The Respondent, by revealing, without a client's consent, facts and information received from a client in a professional capacity, has committed unprofessional conduct as defined by Wis. Adm. Code section SFC 20.02(10) and is subject to discipline pursuant to section 457.26(2)(f).

Count II: The Respondent's conduct, as set out in Count II, is gross negligence as defined by Wis. Adm. Code section SFC 20.01, which constitutes unprofessional conduct as defined by Wis. Adm. Code section SFC 20.02(22) and subjects the Respondent to discipline pursuant to section 457.26(2)(f), Stats.

Count III: The Respondent, by engaging in sexual conduct with a former client within 2 years of termination of professional services, has committed unprofessional conduct as defined by section SFC 20.02(11) Wis. Adm. Code, and is subject to discipline pursuant to section 457.26(2)(f), Stats.

(Testimony of Roxanne Sparks; State Exhibit D)

6. In its Order, the Wisconsin Board accepted the Respondent's surrender of his certification as an independent social worker in the state of Wisconsin. The Order further provided that the Respondent may reapply for recertification after two years, under certain terms and conditions. These terms and conditions required the Respondent to undergo an assessment by a practitioner approved by the Wisconsin Board and to provide sufficient proof that he can practice with reasonable skill and safety of clients and the public. The Order further provided that if an application for recertification is granted, the Respondent's certificate shall be limited in a manner to address any recommendations from the assessment, including but not limited to, psychotherapy, additional professional education, and restrictions on the nature of practice or practice setting. (State Exhibit D)

7. The Respondent applied for his Iowa license in August 1997 and received it in October 1997. The Board was not aware of the pending investigation in Wisconsin when the Respondent was issued his Iowa license. The Respondent never asked the Iowa Board whether the pending charges in Wisconsin would affect his licensure in Iowa. The Respondent was aware of the Board rule which allowed the Iowa Board to discipline a licensee based upon disciplinary action in another state. The Respondent, through his attorney, notified the Iowa Board of the disciplinary action taken by the Wisconsin Board after the Final Decision and Order was issued. (Testimony of Respondent; Respondent Exhibit 7)

8. At the hearing, the Respondent explained some of the circumstances surrounding his decision to sign the stipulation and agree to the entry of the Final Decision and Order by the Wisconsin Board.

a) According to the Respondent, when he left Wisconsin and moved to Iowa, only the first two counts were pending investigations. The Respondent testified that he felt that these allegations were close to being resolved and had been told that neither of these allegations would jeopardize his license in Wisconsin.

b) The Respondent moved to Iowa on September 1, 1997 and started a new job. At the end of September he received a letter from the Wisconsin Board. This was the first notice that the Respondent received that a third count had been added to the Wisconsin Board's investigation. He contacted the former client with whom he had the relationship and with whom he remained on good terms, and she was also surprised. The complaint had apparently been filed by the former client's aunt and her ex-husband.

c) After receiving the letter from the Wisconsin Board in September 1997, the Respondent consulted an attorney for the first time. His attorney corresponded with the Wisconsin Board, but, according to the Respondent "seemed to be getting nowhere." The pending investigation was hurting the former client's relationship with her family. The legal fees were getting expensive, and the Respondent wanted to get the investigation behind him so he could get on with his life in Iowa. The Respondent asked his attorney if he could retire his Wisconsin license without an admission of guilt. The state of Wisconsin agreed to this proposal. According to the Respondent, his attorney told him that the Wisconsin action would not affect his employment in Iowa, and the attorney for the Wisconsin Board told him he would not be calling Iowa to report the disciplinary action.

(Testimony of Respondent)

9. At the hearing, the Respondent explained some of the circumstances surrounding the three counts.

Count I: The Respondent admitted that this occurred and explained that he had been very concerned for the children who continued to be his clients. Their mother had discontinued therapy with the Respondent. The Respondent acknowledged that it was inappropriate for him to have spoken to the former client in the public area of his office. The Respondent testified that he had apologized to the former client.

Count II: The Respondent testified that when he became aware of this client's inappropriate feelings towards him, he told her that they could only have a professional relationship or she would have to transfer to another social worker. According to the Respondent, the client behaved appropriately until she presented him with her sexually explicit journal entry. The Respondent admitted that due to the length of her journal entries, he had occasionally been picking them up at her residence prior to their sessions. He testified that when she showed him the inappropriate journal entry, he panicked and destroyed it. He now realizes that he should never have gone to her home to pick up her journal entries, that he should have spoken to his supervisor about the transference issues, and that the entry should have been made a part of her file.

Count III: The Respondent testified that he never regarded the woman involved in Count III to be a client. She was a teacher who "consulted" with him on two occasions regarding her problem in dealing with a particularly difficult student. The Respondent provided the Board with an affidavit from the woman in which she states that she did not consider herself to be a client of the Respondent. Upon questioning from the Board, the Respondent did admit that he had provided a diagnosis for the woman, she was charged fees for psychotherapy, and her insurance company had made payment.

(Testimony of Respondent; Respondent Exhibit 2)

10. The Respondent is an experienced social worker. He submitted several letters of support from former supervisors, colleagues, and one patient. (Testimony of Respondent; Respondent Exhibits 1, 3-6)

11. Since September 1997, the Respondent has been employed as a clinical therapist with the Delaware County Mental Health Center. One half of his caseload includes children, adolescents, and their families. The remainder of his caseload consists of persistently and severely mentally ill clients. The Respondent also provides services at a small satellite office in Hopkinton, Iowa, which is also staffed by a physician's assistant. As soon as the Respondent became aware that Wisconsin had notified Iowa of their disciplinary action, the Respondent provided his employer with the stipulation, Final Decision and Order, and all correspondence. The Respondent's employer has placed him on probation, pending the outcome of this hearing. Currently, his supervisor reviews all of his progress notes and treatment plans. The Respondent meets with his supervisor weekly to review all of his interactions with clients. (Testimony of Respondent)

12. The Respondent has not completed an assessment. He has attended training on boundary issues in the past, but has not

received any treatment regarding boundary issues. (Testimony of Respondent)

CONCLUSIONS OF LAW

1. 645 IAC 280.212(12) provides:

645-280.212(272C) **Grounds for discipline.** The board may impose any of the disciplinary sanctions provided in rule 280.11(272C) when the board determines that the licensee is guilty of any of the following acts or offenses:

...
280.212(12) Revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country; or failure by the licensee to report in writing to the Iowa board of social work examiners revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country.

2. The preponderance of the evidence established that the Respondent violated 645 IAC 280.212(12) when the Wisconsin Board issued a Final Decision and Order accepting the surrender of his certificate to practice social work in the state of Wisconsin, and allowing him to reapply for certification only after two years had passed and certain requirements had been met.

The Board accepts the Findings of Fact and Conclusions of Law contained in the final order of the Wisconsin Board. While the Respondent and the former client involved in Count III may both feel that she was not the Respondent's client, the Wisconsin Board drew a different conclusion based upon the evidence before it. The Respondent agreed to the entry of the Final Order and waived his right to appeal those findings. Moreover, based on the Respondent's admission that he provided a diagnosis and that the former client had been billed for psychotherapy, it also appears that the Wisconsin Board had a reasonable factual basis for its conclusion.

Based on the disciplinary action taken by the state of Wisconsin, it is clear that the Respondent has difficulty with boundary issues that have not been adequately addressed and which present the Board with a public safety concern. Based on the Respondent's testimony and the letters he presents, it appears that the Respondent also has significant skill and assets as a social worker. The Board believes that if the Respondent complies with the requirements outlined in this Order, he will be able to competently practice social work in Iowa and the public will be protected.

ORDER

IT IS THEREFORE ORDERED, that the license to practice as a licensed independent social worker in the state of Iowa, license number 02566, issued to Charles F. Dopke (Respondent), shall immediately be placed on probation, for an indefinite period, subject to the following terms and conditions:

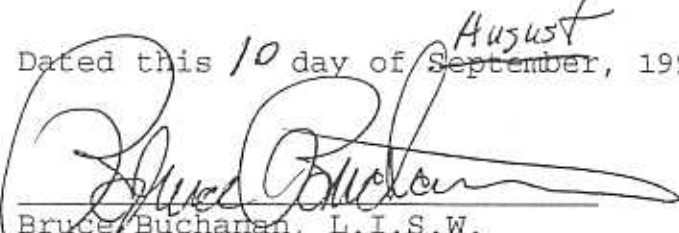
1. The Respondent's practice of social work must be supervised by another licensed independent social worker (L.I.S.W.). A supervision plan must be developed and approved by the Board, and the supervisor shall provide written reports to the Board concerning the Respondent's practice of social work. These written reports shall be submitted every six months.

2. The Respondent is prohibited from providing individual therapy to adult females until further order of the Board. The Respondent must be professionally evaluated, at a facility pre-approved by the Board and at his own expense, regarding boundary issues. The Respondent is required to provide the evaluating facility with copies of the Wisconsin stipulation, Final Decision and Order, and with a copy of this decision of the Iowa Board. The evaluating facility shall provide the Board with a written report containing recommendations, if any, for treatment, therapy, or additional training. Following receipt of this written evaluation report, the Board will issue a further order outlining any additional conditions of probation.

3. The Respondent shall complete six (6) additional hours of continuing education in ethics in the twelve (12) months following the issuance of this decision and order. These hours are in addition to the three hours of ethics required for license renewal.

4. The Respondent shall make a personal appearance before the Board after he completes the six hours of continuing education in ethics. The Respondent shall make additional personal appearances before the Board upon request.

Dated this ^{August} 10 day of ~~September~~, 1998.


Bruce Buchanan, L.I.S.W.
Chairperson

Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General
Department of Justice
Hoover State Office Building
Des Moines, Iowa 50319

Michael F. Lacey, Jr.
Attorney at Law
PATTERSON, LORENTZEN, DUFFIELD, TIMMONS,
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729 Insurance Exchange Building
505 Fifth Avenue
Des Moines, IA 50309-2390
(CERTIFIED)

Any appeal to the district court from disciplinary action of the board shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208.

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:

)
) DIA NO. 98DPHSW013
)

CHARLES F. DOPKE

) AMENDMENT TO PROBATIONARY
) TERMS IN FINDINGS OF FACT,
) CONCLUSIONS OF LAW, DECISION
) AND ORDER

On August 10, 1998, the Board issued its Findings of Fact, Conclusions of Law, Decision and Order in the above-captioned case. The Board placed license no. 02566, issued to Charles F. Dopke (Respondent) on probation for an indefinite period, subject to terms and conditions. The terms and conditions included:

1. The Respondent's practice of social work must be supervised by another licensed independent social worker (LISW). A supervision plan must be developed and approved by the Board, and the supervisor shall provide written reports to the Board concerning the Respondent's practice of social work. These written reports shall be submitted every six months.

2. The Respondent is prohibited from providing individual therapy to adult females until further order of the Board. The Respondent must be professionally evaluated, at a facility pre-approved by the Board and at his own expense, regarding boundary issues. The Respondent is required to provide the evaluating facility with copies of the Wisconsin stipulation, Final Decision and Order, and with a copy of this decision of the Iowa Board. The evaluating facility shall provide the Board with a written report containing recommendations, if any, for treatment, therapy, or additional training. Following receipt of this written evaluation report, the Board will issue a further order outlining any additional conditions of probation.

3. The Respondent shall complete six (6) additional hours of continuing education in ethics in the twelve (12) months following the issuance of this decision and order. These hours are in addition to the three hours of ethics required for license renewal.

4. The Respondent shall make a personal appearance before the Board after he completes the six hours of continuing education in ethics. The Respondent shall make additional personal appearances before the Board upon request.

The Respondent has now provided the Board with a written report from a facility approved by the Board, as required by paragraph 2 of the probationary conditions. The facility has evaluated the

Respondent concerning boundary issues. The Board has reviewed the report and the recommendations of the facility. Based on this review, the Board issues the following amendments to its prior Order.

IT IS THEREFORE ORDERED, that paragraphs 1 and 2 of the probationary terms contained in the original Order, issued August 10, 1998 in this case, are stricken and the following conditions of probation are substituted:

- 1) The Respondent is permitted to be involved in a therapeutic relationship with any client, regardless of the sex or age of the client.

- 2) However, the Respondent's practice of social work must be supervised by a Licensed Independent Social Worker (LISW), approved by the Board, for a minimum period of one (1) year. A supervision plan must be developed and approved by the Board.

- a) The supervising LISW shall be given copies of all investigative reports and evaluations concerning the Respondent, at the Respondent's expense.

- b) The Respondent shall sign all necessary releases to allow the Board to receive communications from the supervising LISW, regarding the Respondent's social work practice.

- c) The supervising LISW will be required to communicate with the Board, in writing and on a quarterly basis, concerning the Respondent's progress and performance.

IT IS FURTHER ORDERED, that the conditions contained in paragraphs 3 and 4, which require completion of a total of six (6) hours of ethics, in addition to those normally required for license renewal, and personal appearances, shall remain in full force and effect.

IT IS FURTHER ORDERED, that the original order is amended to add paragraph 5, as follows:

- 5) The Respondent will be required to make a personal appearance before the Board before he is discharged from indefinite probation. At that time, the Respondent will be required to establish that discharge from probation is appropriate and in the public interest. The Board will not consider a request for discharge from probation until the Respondent has satisfactorily completed at least one full year of supervised practice of social work.

DIA No. 98DPHSW013

Page 3

Dated this 12 day of October, 1998.



Bruce Buchanan, L.I.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General
Department of Justice
Hoover State Office Building
Des Moines, Iowa 50319

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(CERTIFIED)

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STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:

*

*

CASE NO: 98-002

*

CHARLES F. DOPKE,

*

NOTICE OF HEARING

*

*

RESPONDENT

*

TO THE ABOVE NAMED RESPONDENT:

On the 29th day of April, 1998 the Iowa Board of Social Work Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

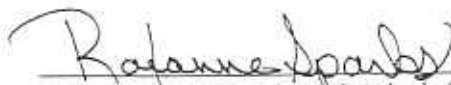
IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 11:00 a.m. on the 13th day of July 1998 at the Lucas State Office Building, 4th Floor Conference Room Side 1, 321 E. 12th Street, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 18th day of May, 1998.


Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

CHARLES F. DOPKE,

Respondent.

)
)
)
)
)

CASE NUMBER: 98-02

STATEMENT OF CHARGES

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Charles Dopke was at all times during the following events a licensed social worker. Respondent was issued license number 02566 to practice as a social worker in the state of Iowa on October 29, 1997, as recorded in the permanent records in the office of the Board.

Respondent's license to practice social work in Iowa is current and will next expire on December 31, 1998.

Respondent's current address as reported to the Board is 213 Liberty Street, Manchester, Iowa, 52057.

COUNT I

Respondent is charged under section 645 Iowa Administrative Code 280.212(12) with being disciplined by a licensing authority of another state.

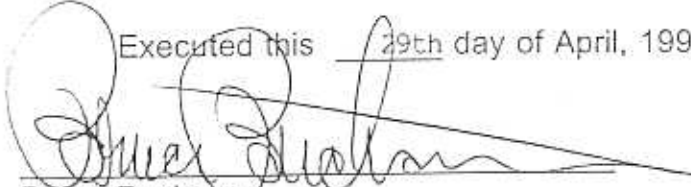
CIRCUMSTANCES

On or about February 12, 1998, the Respondent was disciplined by the State of Wisconsin, Social Worker Section Examining Board of Social Workers, Marriage and Family Therapists and Professional Counselors. A copy of the Wisconsin action is attached as Exhibit A.

FINDING OF PROBABLE CAUSE

On April 29, 1998, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 29th day of April, 1998.

A handwritten signature in cursive script, appearing to read "Bruce Buchanan", written over a horizontal line.

Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson